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2026:PHHC:087283



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-33688-2026
Decided On: 11.06.2026**

RANBIR SINGH**....PETITIONER(S)****VERSUS****STATE OF HARYANA****....RESPONDENT(S)****CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL****Present:** Mr. Arun Singh Jhanda, Advocate for the petitioner**SANDEEP MOUDGIL, J. (ORAL)****1. Prayer**

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.117 dated 16.05.2026 under Sections 306 and 317 (2) of the BNS, 2023 (Annexure P-1) registered at Police Station Mullana.

2. Contention**On behalf of the petitioner**

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case, as no specific overt act has been attributed to him. It is contended that neither the contents of the FIR nor the statement of the complainant disclose the petitioner's presence at the place of occurrence. Counsel further submits that the petitioner, being the owner of the dhaba, was not present at the spot at the relevant time. It is also submitted that

the petitioner is ready and willing to join the investigation and cooperate with the investigating agency.

Notice of motion.

On behalf of the State

On the asking of the Court, Mr. Ved Parkash, Sr. DAG Haryana accepts notice on behalf of the respondent–State and vehemently opposes the prayer made by learned counsel for the petitioner but could not establish the presence of the petitioner at the place of occurrence.

3. Analysis

Having considered the submissions advanced by learned counsel for the parties and upon a perusal of the record, this Court finds that no specific overt act has been attributed to the petitioner. A prima facie examination of the FIR as well as the statement of the complainant does not reveal the presence of the petitioner at the place of occurrence. The petitioner is stated to be the owner of the dhaba and has consistently maintained that he was not present at the spot at the relevant time. Significantly, despite opposing the present petition, learned State counsel was unable to point out any material demonstrating the petitioner's presence at the scene of the alleged occurrence.

The petitioner has further undertaken in para 12 of the present petition that he is ready and willing to join the investigation and shall fully cooperate in its furtherance. Therefore, this Court finds no reason to decline the present petition.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds

to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

11.06.2026

Naina Rajput

Whether speaking/reasoned

: Yes/No

Whether reportable

: Yes/No